

APEX CLOUD TECHNOLOGIES — SENIOR STAFF ENGINEER EMPLOYMENT AGREEMENT (REVISED FA

REVISED EMPLOYMENT AND COLLABORATION AGREEMENT (FAIR STANDARD)

Effective Date: October 1, 2026

Between: APEX CLOUD TECHNOLOGIES INC. ("Company") and ALEX MORGAN ("Employee")

SECTION 1: APPOINTMENT AND PROFESSIONAL ENGAGEMENT

1.1 Title: Senior Staff Software Engineer, Cloud Core Systems.

1.2 Standard Business Hours: Employee shall dedicate customary working hours to Company projects.

1.3 Permitted External Projects: Employee may freely engage in personal programming, non-competing consulting, open-source software contributions, and academic writing outside business hours, provided such activities do not use Company trade secrets or Company-owned equipment.

SECTION 2: COMPENSATION AND EQUITY

2.1 Base Salary: \$190,000 per annum, paid monthly.

2.2 Performance Bonus: Target 25% annual bonus, based on mutually agreed and objective performance benchmarks established within thirty (30) days of hiring.

2.3 Equity Incentive: 15,000 Stock Options with 1-year cliff and 4-year vesting.

2.4 Extended Post-Termination Exercise Period: In the event of departure, Employee shall have twenty-four (24) months to exercise vested options. Accelerated vesting of 50% unvested options in the event of a Change of Control.

SECTION 3: PROFESSIONAL DEVELOPMENT (NO BOND)

3.1 Training Commitment: Company provides training and conference budgets as normal business investment.

3.2 No Lock-In Period: There shall be no mandatory service lock-in, bond, or liquidated damages clawback of any kind.

3.3 Relocation & Advanced Certification: If Company directly covers documented third-party certification costs exceeding \$5,000, reimbursement is pro-rated only if employee leaves within six (6) months, capping at actual direct fees paid.

SECTION 4: INTELLECTUAL PROPERTY CARVE-OUTS

4.1 Inventions Assignment: Employee assigns inventions conceived during business hours or using Company assets.

4.2 Explicit Personal Carve-Out: Company explicitly waives claim over any intellectual property developed by Employee entirely on Employee's own time, without using Company equipment, software, or confidential trade secrets.

SECTION 5: RECIPROCAL TERMINATION AND NOTICE

5.1 Notice Period: Either party may terminate employment by giving thirty (30) calendar days prior written notice.

5.2 Employee Buyout Right: Employee may elect to terminate immediately by paying basic salary for any unserved portion of the thirty-day notice period.

5.3 Severance Upon Involuntary Termination Without Cause: If Company terminates Employee without cause, Company shall pay two (2) months base salary as severance, plus continuation of health benefits.

5.4 Cause Definitions: "Cause" strictly requires intentional felony conviction, active embezzlement, or proven material fraud against Company.

SECTION 6: FAIR RESTRICTIVE COVENANTS

6.1 Narrowed Non-Compete: Restricted for a reasonable period of six (6) months post-separation, limited only to five (5) named direct competitors in cloud storage.

6.2 Paid Garden Leave: During said six (6) month restriction, Company shall pay Employee one hundred percent (100%) of monthly Base Salary as continuing non-compete compensation. If Company ceases payment, non-compete immediately lapses.

SECTION 7: CONFIDENTIALITY

7.1 Standard Trade Secrets Protection: Five (5) year term for business data, perpetual for technical trade secrets.

SECTION 8: MUTUAL DISPUTE RESOLUTION

8.1 Mediation First: Parties agree to thirty (30) days of good faith commercial mediation prior to legal filings.

8.2 Mutual Arbitrator Appointment: Arbitrator appointed jointly by mutual written consent of both parties.

8.3 Reciprocal Attorney Fees: The prevailing party in any dispute shall be awarded reasonable attorney fees from the non-prevailing party.

IN WITNESS WHEREOF, the parties hereto have executed this Negotiated Agreement:

FOR APEX CLOUD TECHNOLOGIES INC.: EMPLOYEE:

Marcus Vance, Chief Executive Officer Alex Morgan